

14TH JUDICIAL CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. EMILY WATSON, et al., Defendants.

Case No. 2024-001507-DC

COMPLAINT AND DEMAND FOR JURY TRIAL

**Pigors v. Shady Oaks MHC, LLC; Homes of America, LLC; Alden Global Capital, LLC;
Partridge Securities LLC; et al.**

Muskegon County Circuit Court, Michigan

Case No. [TO BE ASSIGNED]

PARTIES

Plaintiff

* **ANDREW J. PIGORS**, an individual residing in Muskegon County, Michigan,
appearing pro se.

Defendants

* **SHADY OAKS MHC, LLC** ("Shady Oaks"), a Michigan limited liability company, owner/operator of Shady Oaks Mobile Home Community, Muskegon, Michigan.

* **HOMES OF AMERICA, LLC** ("HOA"), a foreign limited liability company, management company for Shady Oaks MHC.

* **ALDEN GLOBAL CAPITAL, LLC** ("Alden"), a foreign limited liability company, parent/controlling entity.

* **PARTRIDGE SECURITIES LLC**, a foreign limited liability company, affiliated investment entity.

* **JEREMY BROWN**, individually, attorney for Shady Oaks/HOA who filed fraudulent res judicata motion.

* **[COMMUNITY MANAGER NAME]**, individually, Shady Oaks community manager who made defamatory statements regarding Plaintiff's home ownership.

* **JOHN DOES 1-10**, unknown agents and employees of Defendants.

JURISDICTION AND VENUE

This Court has jurisdiction pursuant to MCL 600.601 and MCL 600.605. Venue is proper in Muskegon County pursuant to MCL 600.1629 (real property actions) and MCL 600.1621 (where claims arose).

Amount in controversy exceeds \$25,000.

FACTUAL BACKGROUND

A. The Mobile Home and Community

Plaintiff owned a mobile home located in Shady Oaks Mobile Home Community in Muskegon, Michigan. The Database contains 49 documented claims against Shady Oaks with 4580 documented harms and 1805 total mentions across the evidence record.

B. Pattern of Predatory Conduct

* [CL-20260123-0001] (ALLEGATION_FROM_COMPLAINT) -- Plaintiff Andrew J. Pigors is a Michigan resident and lawful titleholder of a manufactured home at Lot 17, 1977 Whitehall Rd, Muskegon County, Michigan.

* [CL-20260123-0002] (ALLEGATION_FROM_COMPLAINT) -- Defendant Shady Oaks Park MHP LLC is, upon information and belief, a Michigan limited liability company operating the Shady Oaks community in Muskegon County.

* [CL-20260123-0003] (ALLEGATION_FROM_COMPLAINT) -- Defendant Shady Oaks MHP LLC is a distinct Michigan limited liability company whose name and filings were used in related eviction filings.

* [CL-20260123-0004] (ALLEGATION_FROM_COMPLAINT) -- Defendant Homes of America, LLC ("HOA") manages and/or operates manufactured housing communities including Shady Oaks and acted through on-site personnel during events alleged herein.

* [CL-20260123-0005] (ALLEGATION_FROM_COMPLAINT) -- Defendant Partridge Equity Group and Defendant Alden Global Capital exercised ownership

and/or control over HOA and/or the park entities in an enterprise structure to shield liability while directing operations.

* [CL-20260123-0006] (ALLEGATION_FROM_COMPLAINT) -- Defendant Henry Brandel is a neighbor and participant in the removal of Plaintiff's property during the July 17, 2025 set?out.

* [CL-20260123-0007] (ALLEGATION_FROM_COMPLAINT) -- Venue is proper in Muskegon County under MCL 600.1621 and 600.1605. The amount in controversy exceeds the jurisdictional minimum of this Court.

* [CL-20260123-0008] (ALLEGATION_FROM_COMPLAINT) -- From late 2024 through mid?2025, raw sewage was present near Plaintiff's lot; EGLE issued violations. Despite this, Defendants continued billing utilities without remediation credits and failed to timely respond (?31-34 days).

* [CL-20260123-0009] (ALLEGATION_FROM_COMPLAINT) -- Defendants refused to accept or properly credit valid payments (including MDHHS and TrueNorth assistance), misapplied payments, and layered unauthorized fees, preventing Plaintiff from knowing any true "amount due."

* [CL-20260123-0010] (ALLEGATION_FROM_COMPLAINT) -- On or about March 26, 2024, Plaintiff was coerced under threat of eviction into signing an off?site lease at different terms and higher rent, contrary to Michigan law and without meaningful consent.

* [CL-20260123-0011] (ALLEGATION_FROM_COMPLAINT) -- On or about July 3, 2025, two individuals attempted to break into Plaintiff's home and were captured on security cameras; those same individuals appeared during the later set?out.

* **[CL-20260123-0012]** (ALLEGATION_FROM_COMPLAINT) -- On July 17, 2025, with sheriff presence, locks were drilled, Plaintiff's home was cleared, and property and appliances were removed or destroyed. Within 24 hours, a "FREE" sign was placed and neighbors took items; Defendant Brandel removed appliances and supplied a drill used to defeat locks.

* **[CL-20260123-0013]** (ALLEGATION_FROM_COMPLAINT) -- Plaintiff is the lawful titleholder. The writ's execution did not authorize non?officers to destroy or distribute personal property, and no proper inventory/receipts were provided.

* **[CL-20260123-0014]** (ALLEGATION_FROM_COMPLAINT) -- As a direct result, Plaintiff became homeless, slept in his car, and "unstable housing" was used in custody proceedings to suspend parenting time; Plaintiff has been deprived of contact with his son for approximately two months.

* **[CL-20260123-0015]** (ALLEGATION_FROM_COMPLAINT) -- Defendants engaged in self?help and unlawful interference by drilling locks, removing, retaining, and destroying Plaintiff's personal property, and facilitating its distribution to third parties.

* **[CL-20260123-0016]** (ALLEGATION_FROM_COMPLAINT) -- Such conduct violates MCL 600.2918 and entitles Plaintiff to statutory damages and other relief.

* **[CL-20260123-0017]** (ALLEGATION_FROM_COMPLAINT) -- Defendants wrongfully exercised dominion over Plaintiff's personal property, including appliances and household goods, inconsistent with Plaintiff's rights.

* **[CL-20260123-0018]** (ALLEGATION_FROM_COMPLAINT) -- Under MCL 600.2919a, Plaintiff is entitled to three times his actual damages, plus costs and reasonable attorney fees.

* [CL-20260123-0019] (ALLEGATION_FROM_COMPLAINT) -- Defendants failed to maintain the premises in reasonable repair and fit for the use intended, including by permitting sewage conditions and failing to timely remediate while billing utilities.

* [CL-20260123-0020] (ALLEGATION_FROM_COMPLAINT) -- Defendants imposed or sought to enforce terms and charges contrary to Michigan law, including unapproved utilities/fees and coerced lease changes, which are void and unenforceable under the Truth in Renting Act.

* [CL-20260123-0021] (ALLEGATION_FROM_COMPLAINT) -- Defendants engaged in unfair, deceptive, and misleading practices by manipulating ledgers, refusing lawful payments, and misrepresenting balances and authority to coerce payment or eviction leverage.

* [CL-20260123-0022] (ALLEGATION_FROM_COMPLAINT) -- Defendants breached duties of reasonable care by creating and failing to abate hazardous sewage conditions, mishandling property during execution activities, and disregarding legal limits on set?outs.

* [CL-20260123-0023] (ALLEGATION_FROM_COMPLAINT) -- Defendants' extreme and outrageous conduct caused Plaintiff severe emotional distress, including homelessness, humiliation, grief, and loss of parenting time.

* [CL-20260123-0024] (ALLEGATION_FROM_COMPLAINT) -- Defendants acted in concert to accomplish unlawful objectives or lawful objectives by unlawful means, including ledger manipulation, coerced leasing, and unlawful property interference.

* [CL-20260123-0025] (ALLEGATION_FROM_COMPLAINT) -- Economic: replacement value of converted/destroyed property; repair/restoration of the home;

alternative housing; out-of-pocket costs; lost earnings; litigation expenses.

C. The Constructive Eviction

Defendants engaged in a systematic campaign to constructively evict Plaintiff through:

- * Fabrication of lot rent arrears through ledger manipulation
- * Failure to maintain habitable conditions (code violations)
- * Harassment and intimidation by management
- * Interference with home sale (blocked 3 separate buyers)
- * Filing fraudulent legal actions

D. Destruction of Home / Lockout

Despite Plaintiff's ownership of the mobile home (title holder), the community manager declared that Plaintiff "no longer owns" the home and that it was "abandoned." A prospective buyer received messages from management stating:

- * "He no longer owns his home"
- * "He abandoned it"
- * "They have a lawyer working on taking and selling his home"

This is the THIRD time Defendants have blocked a sale of Plaintiff's mobile home, destroying its value and Plaintiff's equity.

E. Jeremy Brown's Fraudulent Res Judicata

Attorney Jeremy Brown filed a motion claiming res judicata to bar Plaintiff's claims, despite:

- * No prior adjudication on the merits of Plaintiff's current claims

- * Different causes of action from any prior proceeding
- * Fraudulent misrepresentation of prior case history

F. Impact on Custody/Parenting Time

The constructive eviction directly contributed to Plaintiff's loss of stable housing, which was weaponized in the custody case (Pigors v. Watson, Case No. 2024-001507-DC) to argue Plaintiff was "homeless" and unfit for parenting time.

G. RICO Enterprise

Defendants operate as an enterprise that systematically:

- * Manipulates lot rent ledgers to create false arrears
- * Targets vulnerable tenants for eviction and home seizure
- * Uses legal process as weapon against tenants who resist
- * Seizes and sells mobile homes of evicted tenants for profit
- * Maintains pattern across multiple communities nationally

COUNTS

COUNT I: RICO -- MCL 750.159i (Michigan RICO)

Elements: (1) Person employed by or associated with enterprise; (2) Conducts or participates in enterprise; (3) Through pattern of racketeering activity.

Facts: Defendants operate Shady Oaks as an enterprise engaged in systematic predatory practices: ledger fraud, wrongful evictions, home seizures, and sale of seized homes. This pattern extends to other HOA-managed communities. The predicate acts include: mail fraud (false billing statements), wire fraud (electronic billing/communications), extortion (threats to seize home), and fraud (ledger manipulation).

Damages: Treble damages per MCL 750.159j(1) + attorney fees + costs.

COUNT II: FRAUD AND MISREPRESENTATION

Elements: (1) Material misrepresentation; (2) Its falsity; (3) Knowledge of falsity; (4) Intent to induce reliance; (5) Justifiable reliance; (6) Resulting damage.

Facts: Defendants fabricated lot rent arrears through ledger manipulation, creating false records showing amounts owed that did not exist. These fraudulent records were used to: initiate eviction proceedings, block home sales, and declare the home "abandoned." The community manager's statements to a prospective buyer that Plaintiff "no longer owns" the home were knowingly false.

COUNT III: SLANDER OF TITLE

Elements: (1) Publication of false statement disparaging title; (2) With malice; (3) Special damages.

Facts: Community manager's statements to prospective buyers that Plaintiff "no longer owns" the home, that it was "abandoned," and that lawyers were "taking and selling" the home constitute false statements disparaging Plaintiff's title to real/personal property. These statements were made with malice -- knowing Plaintiff held title -- specifically to prevent sale and enable Defendants to seize the home.

COUNT IV: TORTIOUS INTERFERENCE WITH BUSINESS RELATIONS

Facts: Defendants intentionally interfered with THREE separate prospective sales of Plaintiff's mobile home by: (a) Making false statements to buyers about ownership; (b) Refusing to approve buyer lot applications; (c) Creating hostile conditions that deterred buyers; (d) Threatening to seize/sell the home themselves. Each blocked sale represents a separate instance of tortious interference.

COUNT V: CONVERSION

Facts: Defendants have exercised unauthorized control over Plaintiff's mobile home by: declaring it "abandoned" despite Plaintiff's title ownership, preventing Plaintiff's access, and asserting plans to sell it. This constitutes wrongful conversion of Plaintiff's personal property.

COUNT VI: BREACH OF CONTRACT / LEASE VIOLATIONS

Facts: Defendants breached the lot lease agreement by: failing to maintain common areas, failing to provide habitable conditions, failing to follow proper eviction procedures, and unilaterally declaring lease termination without proper notice or legal process.

COUNT VII: VIOLATION OF MOBILE HOME COMMISSION ACT (MCL 125.2301 et seq.)

Facts: Defendants violated the Michigan Mobile Home Commission Act through: failure to maintain community in habitable condition, failure to follow MHCA eviction procedures, retaliatory actions against Plaintiff, and failure to provide required disclosures.

COUNT VIII: VIOLATION OF TRUTH IN RENTING ACT (MCL 554.631 et seq.)

Facts: Lease provisions that violate the Truth in Renting Act including: provisions waiving tenant rights, provisions allowing seizure of property without due process, and provisions inconsistent with Michigan law.

COUNT IX: CONSTRUCTIVE EVICTION

Facts: Defendants' cumulative actions -- ledger fraud, harassment, code violations, interference with sale, false statements about ownership -- rendered the premises uninhabitable and effectively forced Plaintiff's departure without proper legal process.

COUNT X: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

Facts: Defendants' conduct was extreme and outrageous: systematically destroying Plaintiff's housing stability while knowing this directly impacted his custody case and parental relationship. The combination of financial fraud, property theft, and deliberate sabotage of home sales was calculated to maximize harm.

COUNT XI: NEGLIGENCE / PREMISES LIABILITY

Facts: Defendants failed to maintain the community in compliance with housing codes, creating hazardous conditions. Multiple housing code violations documented.

COUNT XII: ABUSE OF PROCESS

Facts: Jeremy Brown's fraudulent res judicata motion was filed not for its intended legal purpose but to obstruct Plaintiff's legitimate claims. The eviction proceedings were initiated based on fabricated arrears. Legal process was weaponized to accomplish what could

not be done through legitimate means.

COUNT XIII: CIVIL CONSPIRACY

Facts: Defendants Shady Oaks, HOA, Alden, Partridge, Brown, and community manager acted in concert to: fabricate arrears, evict Plaintiff, seize his home, and block all sales. The coordinated nature of these actions -- across multiple corporate entities and individuals -- demonstrates a conspiracy.

COUNT XIV: DECLARATORY JUDGMENT -- TITLE AND OWNERSHIP

Facts: Plaintiff seeks declaratory judgment confirming: (a) Plaintiff's title ownership of the mobile home; (b) Defendants have no right, title, or interest in the mobile home; (c) Any actions taken to "abandon," seize, or sell the home are void; (d) Plaintiff retains full rights of ownership including right to sell.

PRAYER FOR RELIEF

Plaintiff respectfully requests this Court:

- * Enter judgment against all Defendants, jointly and severally;
- * Award compensatory damages in excess of \$500,000;
- * Award treble damages under Michigan RICO (MCL 750.159j);
- * Award punitive damages for willful, wanton, and malicious conduct;
- * Enter declaratory judgment confirming Plaintiff's title to the mobile home;

- * Enter injunctive relief preventing Defendants from: (a) entering, altering, or selling Plaintiff's home; (b) interfering with prospective sales; (c) making false statements about Plaintiff's ownership;
- * Award costs of suit and reasonable expenses;
- * Grant such other and further relief as this Court deems just and equitable.

JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Respectfully submitted,

ANDREW J. PIGORS, Pro Se [Address] [Phone] [Email]